Privacy policy for website operators based on GDPR specifications

Welcome to Host Europe GmbH!

We are delighted you are visiting our website and thank you for your interest in our company and our first-class products, services, web pages and mobile apps (in summary: our “services”). Data protection and data security are very important to us with regard to the use of our website. We would therefore like to take this opportunity to inform you about the personal data we collect during your visit to our website and what we use this data for.

We kindly ask you to routinely read this privacy policy as changes to legislation or our internal corporate processes can necessitate an adaptation of its content. You can call up, save and print out this privacy policy at any time under “Privacy Policy”.

§ 1 Controller and scope

The controller in the meaning of the EU General Data Protection Regulation (hereinafter: GDPR), other national data protection laws of member states and additional data protection regulations is:

Host Europe GmbH
Hansestr. 111
51149 Cologne
Germany
Tel.: +49 2233 99341040
Email: info@hosteurope.de
Website: www.hosteurope.de

This privacy policy applies to the website(s) of Host Europe GmbH that is accessible via the domain www.hosteurope.de and various subdomains (hereinafter: “our website”).

§ 2 Data protection officer

The controller’s external data protection officer is:

Dr. Karsten Kinast, LL.M. (Attorney)
KINAST Rechtsanwaltsgesellschaft mbH
Hohenzollernring 54
D-50672 Cologne

§ 3 Principles of data processing

The term personal data refers to all information that relates to an identified or identifiable natural person. It includes, for instance, information such as your name, age, address, telephone number, date of birth, email address, IP address and user behavior. Information that does not allow us to establish a connection to you as a person (or would only allow such a connection with an unreasonable amount of effort), for instance anonymized information, is not classed as personal data. Processing personal data (for instance collecting, querying, using, storing and transferring personal data) always requires a legal basis or your consent. Processed personal data is deleted as soon as the purpose for which it was collected is fulfilled and statutory retention periods no longer apply.

Insofar as we process your personal data in order to provide specific services to you, the following serves to inform you of the concrete processes, the scope and the purpose of data processing, the legislation on which it is based and the duration of storage in each case.

§ 4 Individual processing activities

1. Website provision and use

a. Type and scope of data processing

When you call up and visit our website, we collect personal data that your browser automatically sends to our server. This information is stored temporarily in a so-called log file. When you use our website, we collect the following data needed for technical reasons to display the website and guarantee its security and stability:

- IP address of the requesting computer
- Date and time of access
- Name of the URL and the requested file
- The website from which access was made (referrer URL)
- Your browser and possibly also your computer's operating system as well as the name of your access provider

b. Legal basis

Art. 6 Para. 1 (f) GDPR serves as the legal basis for data processing activities detailed in the preceding. Processing the specified data is an essential part of making the website accessible and therefore serves a legitimate interest of our company.

c. Duration of storage

The specified data will be deleted as soon as it is no longer needed to display the website. Collecting the data is essential to making the website available; storing the data in log files is essential to operating the website. The user therefore has no option to object to collection and storage. In some cases data may be stored for other purposes if required by law.

2. Registration / User account

a. Type and scope of data processing

Our website offers you an option to register as a user by submitting your personal data. Your registration is required for the purpose of concluding a contract with us or for pre-contractual activities with regard to providing you with permanent access to the subscribed services.

We use your processed data to create a personalized user account for you that you can use to access specific content and services such as webhosting, server, domains, SSL & security, email & office and homepage & shop on our website.
We process your email address so we can send you new login details should you happen to forget them.
You can see in detail which personal data we process during registration from the following overview:

- Name
- Email address
- Address
- Date of birth
- IP address
- Telefonnummer
- Payment information

b. Legal basis

Processing the preceding personal data serves the fulfillment of a contract between you and Host Europe GmbH or the implementation of pre-contractual activities in accordance with Art. 6 Para. 1 (b) GDPR.

You can withdraw your consent to the use of your personal data at any time with future effect by sending an email to the email address detailed in clause 1 above or to the data protection officer (cf. clause 2 above).

c. Duration of storage

Processed data will be deleted as soon as it is no longer required for contract performance purposes. It may also be necessary to keep your personal data on record after the fulfillment of a contract to meet contractual or legal requirements. In some cases data may be stored for other purposes if required by law.

d. Cancelling registration

You can cancel your registration as a user at any time. You can also request changes to be made to your personal data on record. To do so, please use the link in your customer menu or contact us at datenschutz@hosteurope.de.
However, if the processed data is required for the purpose of contract performance or pre-contractual activities, it can only be deleted prematurely if contractual or legal obligations allow.

3. Newsletter

a. Type and scope of data processing

Our website offers you an option to subscribe to a free newsletter. We require the following details from you if you wish to subscribe:

- Email address

Your personal data will not be shared with any third party in connection with your newsletter subscription.

Newsletter subscriptions are based on the so-called double opt-in method. This means we will only send you newsletters if you click on the link in a confirmation email sent to you to confirm your subscription. This is to ensure that only you can subscribe to the newsletter using your email address. You will need to confirm your subscription soon after receiving the confirmation email as your details will otherwise be automatically deleted from our database.

b. Legal basis

Processing your email address in order to send you newsletters is based on the following voluntary declaration of consent pursuant to Art. 6 Para. 1 (a) GDPR:

Declaration of consent:

By entering my data and clicking the “Send” button, I declare my consent to having my email address processed for the purpose of receiving regular newsletters. I can cancel my newsletter subscription at any time by clicking on the corresponding link at the end of each newsletter. I have read and accepted the current privacy policy. I can withdraw my consent to the collection of my personal data captured during the registration process at any time by contacting *datenschutz@hosteurope.de*.

You can withdraw your consent to the use of your personal data at any time with future effect by sending an email to the email address detailed in clause 1 above or to the data protection officer (cf. clause 2 above).

c. Duration of storage

Your email address will be stored for as long as you are subscribed to the newsletter. Your email address will be deleted when you unsubscribe from the newsletter. In some cases data may be kept on record for other purposes if required by law.

d. Personalized Advertising

We may process stock data from customers with customer accounts and newsletter opt-in to recommend them individually interesting products. This is done on the basis of a balance of interest according to Art. 6 (1) GDPR.
You may at any time object to this processing of your personal data by contacting Datenschutz@hosteurope.de. We will then not process your data for this purpose in the future.

4. Contact form

a. Type and scope of data processing

You can get in touch with us via a contact form made available to you on our website. You will be informed of this privacy policy when you submit your inquiry via the contact form in order to obtain your consent. When you make use of the contact form, the following personal data will be collected and processed via the form:

- Name
- Email address
- Message content
- Customer number (voluntary)

We require your email address in order to allocate your inquiry and send you a response. Your personal data will not be disclosed to any third party when you use the contact form.

b. Legal basis

The processing of data for contact purposes as described above (cf. clause 4 4. a.) is based on the following voluntary declaration of consent pursuant to Art. 6 Para. 1 (a):

Declaration of consent:

By entering my data and clicking the “Send” button, I declare my consent to having my email address, my name and customer number processed for the purpose of responding to my contact inquiry. I have read and accepted the current privacy policy. I can withdraw my consent at any time with future effect by contacting datenschutz@hosteurope.de.

You can withdraw your consent to the use of your personal data at any time with future effect by sending an email to the email address detailed in clause 1 above or to the data protection officer (cf. clause 2 above).

c. Duration of storage

We will delete the personal data collected from you via the contact form as soon as we have dealt with your inquiry and brought the subject matter to a close. In some cases data may be kept on record for other purposes if required by law.

5. Order form

a. Type and scope of data processing

The order form consists of data fields you can fill in on our website. Users filling in the order form will enter the following personal data to obtain various services (e.g. orders, offers) from the controller:

- Title
- Name
- Street
- Zip code
- Place
- Country
- Email
- Company

The following (additional) personal data will be required if you wish to be called back:

- Telephone number

b. Legal basis

Processing the preceding personal data serves the fulfillment of a contract between you and Host Europe GmbH or the implementation of pre-contractual activities in accordance with Art. 6 Para. 1 (b) GDPR.
You can withdraw your consent to the use of your personal data at any time with future effect by sending an email to the email address detailed in clause 1 above or to the data protection officer (cf. clause 2 above).

c. Duration of storage

The duration of storage with regard to the preceding personal data depends on the nature of your inquiry. Your data will be routinely deleted insofar as the purpose of your communication no longer applies and data storage is no longer necessary.

6. Contact options on our website

Our website offers you various options to contact us by email:

- E-Mail Service & Support: support@hosteurope.de
- E-Mail Sales: sales@hosteurope.de
- E-Mail Contracts: vertrag@hosteurope.de

a. Type and scope of data processing

Every user of this website can send their inquiries to this email address. Email inquiries are processed by the appropriate department. The data we collect in this case is limited to the email address of the email account you used to contact us and any other personal data you disclose to us within the scope of your inquiry.

b. Legal basis

The lawfulness of data collection is based on Art. 6 Para. 1 (f) GDPR as both you and we have an interest in contacting and communicating with one another and we as a company have a legitimate interest in processing the data detailed in the preceding in order to respond to your inquiry.

c. Duration of storage

The duration of storage with regard to the preceding personal data depends on the nature of your inquiry. Your data will be routinely deleted insofar as the purpose of your communication no longer applies and data storage is no longer necessary (or once we have finished handling your inquiry).

§ 5 Disclosing data

We will only disclose your data to third parties if:

- You have explicitly granted your consent in accordance with Art. 6 Para. 1 p. 1 (a) GDPR
- To do so is lawful and necessary to fulfill our contractual obligations towards you in accordance with Art. 6 Para. 1 p. 1 (b) GDPR
- We are obligated to do so by law in accordance with Art. 6 Para. 1 p. 1 (c) GDPR
- Disclosure is necessary to protect our legitimate interest or to assert, exercise or defend legal claims in accordance with Art. 6 Para. 1 p. 1 (f) GDPR and there is no reason to assume that you have an overriding interest in non-disclosure worthy of protection.

§ 6 Use of cookies

a. Type and scope of data processing

Our website uses cookies. Cookies are small files that are sent to and stored by your browser when you visit our web pages. Certain technical cookies are essential as some of our website's functions will not work without them. Other cookies enable us to carry out a range of analyses. Cookies can, for instance, recognize your browser and send certain information to us when you return to our website. Cookies enable us to make our website more effective and user-friendly for you as they can help us to understand how you use our website and your preferred settings (for instance country and language

settings). If third parties use cookies to process information, this information will be collected directly from your browser. Cookies do not cause any damage to your end device. They cannot execute programs and do not contain viruses.
Our website uses different kinds of cookies whose type and function are explained in the following.

Type 1: Transient cookies	Our website uses transient cookies, which are automatically deleted when you close your browser. This type of cookies enables capturing your session-ID. It enables us to assign different requests from your browser in one session and it is possible for us to recognize your device on later visits.
Type 2: Persistent cookies	Our website uses persistent cookies. Persistent cookies are cookies that are stored in your browser for a longer time period and send information to us. The storage duration depends on the type of cookie. You can delete persistent cookies yourself using your browser settings.

Function 1:	Required cookies These cookies are required for technical reasons as they enable you to visit our website and use the functions we provide. This includes, for instance, the following applications: Website-tracking (order process). These cookies also contribute towards making the use of our website secure and in compliance with regulations.
Function 2:	Performance-related cookies These cookies enable us to analyze the use of our website and to improve its performance and functionality. They are used to collect information on how visitors use our website, which pages are most frequently visited and whether error messages appear on certain pages.
Function 3:	Cookies for marketing and social media Advertising cookies (third-party providers) make it possible to show you various offers that correspond to your interests. These cookies collect data on user web activity over extended periods of time. The cookies may recognize you on various of your end devices. The following third parties receive personal data from cookies incorporated in our website: • Google • Bing • Optimizely • Awin • Adwords Conversion Tag • Qualaroo Furthermore, certain cookies allow us to create a connection to your social networks and to share the content of our website with your networks.

b. Legal basis

The legal basis for processing personal data using cookies is Art. 6 Para. 1 (f) GDPR on account of the purposes described in the preceding (cf. clause 6. a.). If you have granted your consent to the use of cookies in response to a notice ("cookie banner") on the website, then lawfulness is also based on Art. 6 Para. 1 p. 1 (a) GDPR.

c. Duration of storage

The information will be deleted as soon as the data provided to us via the cookies is no longer required to fulfill the purposes described in the preceding. In some cases data may be stored for other purposes if required by law.

d. Configuration of browser settings

Most browser are set to accept cookies by default. You can, however, configure your browser so that it only accepts certain cookies or none at all. Please note, however, that you may not be able to use all the functions of our website if its cookies are deactivated in your browser settings. You can also use your browser settings to delete cookies already stored in your browser. In addition, you can set your browser to inform you whenever a cookie is about to be stored. As browsers differ in regards to their functionality, please refer to your browser's help menu for information on adjusting configuration options.
We recommend installing specific plug-ins if you want to see a comprehensive overview of all third parties with access to your web browser.

§ 7 Tracking and analysis tools

We use tracking and analysis tools to ensure our website is continuously optimized and its design is suitable for its purpose. Tracking measures also enable us to collect statistical data with regard to user behavior on our website and to use the insights gained to further improve our online offering for you. These interests justify the use of tracking and analysis tools described below in accordance with Art. 6 Para. 1 p. 1 (f) GDPR. If you have granted your consent to the use of cookies in response to a notice ("cookie banner") on the website, then lawfulness is also based on Art. 6 Para. 1 p. 1 (a) GDPR. The purpose of tracking and analysis tools and the data they process can also be referenced from the following descriptions. You can use our website's cookie settings to activate and deactivate your selection of tracking and analysis tools at any time.

1. Google Analytics

This website uses Google Analytics, a web analysis service of Google Inc., 1600 Amphitheatre Parkway, Mountainview, CA 94043 USA ("Google"). Google Analytics uses so-called cookies. Cookies are small text files that are stored on your computer and enable an analysis of your use of the website.

The information generated by the cookies about your use of the website, for instance the time, location and frequency of your visits, is usually transmitted to and stored on a Google server in the United States. The collection of other personal data in addition to your IP address by the cookies set by Google Analytics cannot be ruled out when Google Analytics is used. Please note that Google may disclose this information to third parties if required to do so by law or if a third party processes the information on behalf of Google.

Google will use this information on behalf of the website operator for the purpose of evaluating your use of the website, compiling reports on website activity and providing other services relating to website and internet usage to the website operator. According to Google, Google will not associate the IP address transferred by your browser within the context of Google Analytics with any other data held by Google.

You can prevent the storage of cookies on your computer by adjusting the corresponding settings in your browser. Please note, however, that you may not be able to use all the functions of this website in full if you do so.

The collection of other personal data in addition to your IP address by the cookies set by Google Analytics cannot be ruled out. In addition to deactivating tracking cookies as described in the preceding, you can also prevent Google Analytics from collecting information about your use of the website and transferring it to Google Analytics by downloading and installing the browser plug-in available under: http://tools.google.com/dlpage/gaoptout?hl=en.
This plug-in prevents information about your visit to the website from being sent to Google Analytics. The plug-in does not prevent any other form of analysis.

This website uses Google Analytics with the “anonymizeIp” extension to ensure the best possible protection of your personal data. The code deletes the last 8 bits of IP addresses so that your IP address is anonymized when it is collected (so-called IP masking). Google truncates and therefore anonymizes IP addresses in Member States of the European Union as well as in other countries that are party to the Agreement on the European Economic Area before they are sent to the USA. Only in exceptional cases is the full IP address sent to and truncated by a Google server in the USA.

2. Google AdWords

We use “Google AdWords” technology in general and, in particular, conversion tracking. Google Conversion Tracking is an analysis service provided by Google Inc., 1600 Amphitheatre Parkway, Mountain View, CA 94043, USA. Clicking on an advertisement placed by Google will install a conversion tracking cookie on your computer. These cookies are valid for 30 days and are not used for personal identification purposes. If you visit certain pages of our website while the cookie is still active, both Google and we can recognize that you clicked on a specific advertisement and were subsequently transferred to this website. Every Google AdWords customer is given a different cookie. It is therefore impossible to track cookies via the websites of AdWords customers.

The data collected by conversion cookies serves to create conversion statistics for AdWords customers who use conversion tracking. Customers receive information on the number of users who clicked on their advertisement and were subsequently transferred to a website with a conversion tracking tag. However, they do not receive any information that would allow users to be personally identified.

If you do not want to participate in conversion tracking, you can prevent this by adjusting your browser’s settings accordingly so that, for instance, setting cookies is generally prohibited. You can also deactivate conversion tracking cookies by adjusting your browser so that only cookies from “googleadservices.com” are blocked.

3. Google Remarketing

We use “Google Remarketing” technology provided by Google Inc., 1600 Amphitheatre Parkway, Mountain View, CA 94043, USA. Google Remarketing is used to show adverts to users who have already visited our web pages and online services and displayed an interest in a specific offering. This enables targeted, interest-based advertisements within Google’s advertisement network to be displayed on our website. Google Remarketing uses cookies for analysis purposes. They enable the recognition of our visitors as soon as they visit websites participating in Google’s advertising network. These cookies make it possible to display targeted, interest-based advertisements on the basis of websites in Google’s advertisement network that were previously visited by the user (and that also use Google Remarketing).

If you do not wish to see any targeted, interest-based advertisements, you can deactivate Google’s use of cookies via this link: https://www.google.com/settings/ads.

4. ZANOX

We use technology of AWIN AG, Stralauer Allee 2, 10245 Berlin. Should visitors access our website via a link from a ZANOX affiliate network and place an order, the conclusion is anonymously transferred to ZANOX via a trackingcode, to credit a commission to the partner for the conversion. More information can be found at: https://www.awin.com/de/rechtliches/privacy-policy

5. Optimizely

On this website Optimizely, a web analyst serice of Optimizely, Inc. ("Optimizely") is used to facilitate and conduct A/B-Tests to further enhance our website. Optimizely uses cookies to analyze the website. The information stored in the cookie about your using of this website are generally transferred and stored to a server of Optimizely in the USA.
You can deactivate the Optimizely-Tracking at any time (and thus prevent the capturing of the usage data of the cookie – including your IP address – and usage and processing of this data through Optimizely). Information and a possibility to prevent your usage information from being captured by and being transferred to Optimizely can be found, in addition the the previously mentioned possibility of deactivating your tracking cookies, at the following link: https://www.optimizely.com/opt_out/

6. Qualaroo

Qualaroo LLC., PO Box 29502 #18534, Las Vegas, Nevada 48084, USA, provides us with a solution for website surveys and analysis to enhance user experience. Qualaroo does not receive personal identifiable information, all contents are anonymized. More information can be found at: https://qualaroo.com/privacy-policy/

7. Bing

Bing Conversion Tracking from Microsoft Corporation, One Microsoft Way, Redmond, WA 98052-6399, USA – can store a temporary cookie on your computer if you click on one of our adverts at Bing or on select websites of the Bing-network. Should you reach our website via such a conversion page, your clicking of the advert will be stored with us and Microsoft Bing. This enables us to create conversion-statistics, which means tracking how many users conduct and order after being referred to us via a conversion site.

More information and a possibility to prevent capturing of information of your website usage through Bing Ads and this being transferred to Microsoft can be found, in addition the the previously mentioned possibility of deactivating your tracking cookies, at the following link: http://choice.microsoft.com/de

8. Google reCAPTCHA

For increased security of some of our sites we use the service reCAPTCHA from Google Inc. This helps in distinguishing whether site calls are made by a natural person or by machine or automated processing. For this, the IP address and any other data required by Google for the reCAPTCHA service is sent to Google. For more information about the Google Inc. privacy policy, see http://www.google.de/intl/de/privacy or https://www.google.com/intl/de/policies/privacy

§ 8 Hyperlinks

Our website contains so-called hyperlinks to websites operated by other providers. Activating a hyperlink will transfer you directly to the website of the corresponding provider. You can recognize the transfer by the change of URL, for example. We cannot accept any liability for the confidential use of your data on these websites as we have no influence on the compliance of these companies with data protection regulations. Please refer directly to the website concerned to obtain information on how your personal data is handled.

§ 9 Right of access

The GDPR stipulates that you as a data subject whose data is processed have the following rights:

- Pursuant to Art. 15 GDPR, you can request information with regard to your personal data processed by us. In particular, you can request information in relation to the purposes of the processing; the categories of personal data concerned; the categories of recipients to whom the personal data has been or will be disclosed, including recipients in third countries or international organizations; the envisaged period for which the personal data will be stored; the existence of the right to request from us the rectification or erasure of your personal data or restriction of processing of your personal data or to object to such processing; the existence of the right to lodge a complaint; the source of your personal data to the extent that it was not collected by us; and the existence of automated decision-making, including profiling and any meaningful information about the particulars thereof.
- Pursuant to Art. 16 GDPR, you can demand the immediate correction of incorrect or incomplete personal data stored by us.
- Pursuant to Art. 17 GDPR, you have a right to request the erasure of your personal data stored by us insofar as processing is not required for the purpose of exercising the right of freedom of expression and information; for compliance with a legal obligation; for the performance of a task carried out in the public interest or in the exercise of official authority vested in us; or for the establishment, exercise or defense of legal claims.
- Pursuant to Art. 18 GDPR, you have a right to restrict our use of your personal data if you contest the accuracy of the data; the processing is unlawful; we no longer need the personal data, but it is required by you for the establishment, exercise or defense of legal claims. Your right pursuant to Art. 18 GDPR remains unaffected if you have lodged an objection to data processing in accordance with Art. 21 GDPR.

- Pursuant to Art. 20 GDPR, you have the right to receive the personal data concerning you, which you have provided to us, in a structured, commonly used and machine-readable format; you also have the right to have your data transmitted to another controller.
- Pursuant to Art. 7 Para. 3 GDPR, you have the right to withdraw previously granted consent at any time. Consequentially, we will not be permitted to continue processing your data on the basis of your consent in the future.
- Pursuant to Art. 77 GDPR, you have the right to lodge a complaint with a supervisory authority. You can contact the supervisory authority of the Member State of your habitual residence, place of work or place of the alleged infringement.

§ 10 Right to Object

In relation to the processing of your personal data on the basis of legitimate interests in accordance with Art. 6 Para. 1 p. 1 (f) GDPR, you have the right pursuant to Art. 21 GDPR to object to your data being processed on grounds relating to your particular situation or if your objection concerns direct marketing. With regard to direct marketing, you have a general right to object without providing a specific reason and we are required to take appropriate action.

§ 11 Data safety and security measures

We undertake to protect your privacy and to treat your personal data confidentially. We have implemented extensive technological and organizational measures to prevent the manipulation, loss or misuse of your personal data stored on our servers. These measures are routinely reviewed and adapted to reflect technological developments. They include the use of acknowledged encryption methods (SSL or TLS).
Please note, however, that the structure of the internet makes it possible for persons and institutions outside of our sphere of control to disregard data protection regulations and the security measures detailed in the preceding. In particular, data that is transmitted without prior encryption – for instance by email – can be read by third parties. We have no technological influence in this regard. It is the user's responsibility to protect the data provided by them from misuse by way of encryption or other suitable means.